

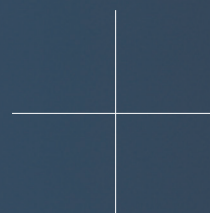


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CHAPTER II

Pushing Forward the Implementation of the *Outline*, and Enhancing Law-Based Governance in IP

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Boosting Competitiveness of China in
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01 Implementation of the *Outline for Boosting Competitiveness of China in the Area of Intellectual Property*

1.1 Give full play to the joint conference system

The inter-ministerial joint conference system for boosting competitiveness of China in the area of IP (referred to as the joint conference system hereinafter) was implemented and the first plenary session of the joint conference was convened to deliberate on the *Working Rules of the Inter-ministerial Joint Conference*

for Boosting Competitiveness of China in the Area of Intellectual Property and the *2024 Promotion Plan for Boosting Competitiveness of China in the Area of Intellectual Property* and assign the key tasks for the next stage.

1.2 Advance the implementation of the *Outline* and the *Plan*

The *2024 Promotion Plan for Boosting Competitiveness of China in the Area of Intellectual Property* was formulated and issued, clearly defining over 100 key tasks in seven aspects for 2024. Annual monitoring and evaluation were carried out on the implementation of the *Outline for Boosting Competitiveness of China in*

the Area of Intellectual Property (2021–2035) and the *National Plan for Protection and Utilization of Intellectual Property During the 14th Five-Year Plan Period* to form an effective work mechanism that promotes task implementation through monitoring and evaluation.

1.3 Strengthen the supervision and guidance for work at the local level

Further guidance was provided to local areas on constructing an overall coordination and planning mechanism for IP-related work, which was strengthened in multiple regions. The third batch of typical cases for

boosting competitiveness of China in the area of IP were collected and promoted, and 30 typical cases were selected as best practices for all regions to draw on comprehensively.

1.4 Promote strategic implementation research and information publicity

Focusing on key tasks for boosting competitiveness of China in the area of IP, research bases for implementation of the national IP strategy were organized to conduct 16 special studies and 6 emergency-oriented studies and compile 37 editions of the *Information Express* on IP strategy studies. 12 editions of the *Work Updates* of the joint conference were compiled and distributed. The *Development Report on Boosting Competitiveness of China in the*

Area of Intellectual Property (2024) was compiled and published, indicating that the index for boosting competitiveness of China in the area of IP steadily rose to 125.5 points in 2024, an increase of 4.5% compared with the previous year; and the regional development index in the IP area generally increased, with the average rating of the index of all provinces nationwide reaching 81.0 points, an increase of 1.35 points compared with the previous year.

02 Legal System Development

The revision of the *Trademark Law* was advanced. The revision of the *Trademark Law* was promoted to be included in the legislative acts to be submitted to the Standing Committee of the National People's Congress for deliberation in the *Legislative Plan of the State Council for 2024*. 3 research symposiums were held in conjunction with the Ministry of Justice. A total of 19 research symposiums were held throughout the year. Research and argumentation on amending the *Implementing Regulations of the Trademark Law* advanced in a coordinated manner.

The revision of the *Regulations on the Protection of Layout Designs of Integrated Circuits* was promoted. In line with the development trend of the new generation of information technology, a draft amendment was formed based on full communication and coordination. Compared with the current regulations, 16 new contents were added and 24 rules were amended. The legislative process was actively promoted, and public opinions were solicited on December 26, 2024.

The legislation on geographical indications was advanced. Under the principles of “fully respecting the history, reflecting on the actuality and referring to international standards”,

research on the legislation of geographical indications was continuously promoted with the overall approach of two parallel, complementary and seamlessly integrated protection models—trademark protection and specialized protection—and give applicants the option to choose from them. Targeted research on the geographical indication legislation was conducted in Hubei Province, Shandong Province and Inner Mongolia Autonomous Region.

3 departmental rules were formulated and revised, including the *Measures for Administrative Adjudication and Mediation of Patent Disputes*, the *Rules of the CNIPA on Administrative Reconsideration*, and the *Provisions of the CNIPA on Procedures for the Formulation of Rules*. 5 patent and trademark series guides were issued, namely, the *Guide for Patent Applications for Artificial Intelligence (AI) Related Inventions (Trial Implementation)*, the *Guide on Restoration of Priority and Addition or Correction of Priority Claims*, the *Guide on Application of Incorporation by Reference in Invention or Utility Model Patent Applications*, the *Guide on Recording Procedures of Trademark License*, and the *Guide on Trademark Cancellation Procedures*.

03 Promoting the Construction of a Law-Based Government

The publicity and implementation activities for the revised Implementing Regulations of the Patent Law were launched on the theme of “promoting innovation through the rule of law and raising awareness of patent law nationwide”. Support and guidance were

delivered to local departments on practical explorations of legislation in the IP field. The legality review and fair competition investigation on normative documents were consistently conducted, and the *Measures of the CNIPA on Fair Competition Review* was formulated.

04 IP Examination Standards and Policies

The service and guidance for innovation entities were strengthened. The *Introduction to the Revisions of the Patent Examination Guidelines 2023* was published, and over 60 related domestic and international training sessions and lectures were held. The enforcement of the Patent Law, the Regulations and the Patent Examination Guidelines was effectively guaranteed. The *Patent Application Guide* was published, and the *Practical Manual of PCT International Phase Examination Rules* was republished. The English Version of the *Patent Examination Guidelines* was compiled.

The business guidance system was continuously improved. The publications in the trademark field include the *Collection of Typical Cases of Substantive Trademark Examination*, the *Manual for Substantive Examination of Trademark Registration Applications*, and the *Notice on Implementation of the Pilot Program for the Examination and Approval of Major, Difficult and Complex Trademarks*.

05 Administrative Reconsideration and Administrative Litigation

The work on administrative reconsideration and administrative litigation progressed well. The *Rules of the CNIPA on Administrative Reconsideration* was revised. CNIPA expanded the types and fields of administrative reconsideration cases, broadened the scope of administrative reconsideration cases accepted, and concluded the first administrative reconsideration case involving patent term compensation (PTA).

In 2024, CNIPA received a total of 2,443 administrative reconsideration cases involving patents and trademarks and concluded 2,256 administrative reconsideration cases. Approximately 49% of the administrative reconsideration cases involving patents were

concluded by settlement; and approximately 34% of the administrative reconsideration cases involving trademarks were concluded by settlement, representing an increase of more than 10 percentage points compared with the previous year.

In 2024, 2,136 administrative proceedings were filed with the people's courts by administrative counterparts against administrative decisions made by the Patent Reexamination and Invalidation Department, and approximately 19,000 administrative proceedings were filed with the people's courts against administrative rulings made by the Trademark Review and Adjudication Board.